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The Yale Political Quarterly

An Undergraduate Publication

VOLUME 22, NUMBER 2, FEBRUARY-MARCH 2001

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Stephen Balkaran

Sanctions to End Apartheid: The Political Economy of U.S.-African Relations

Jason Lott

Organ Failure: Reassessing the Role of Information Dissemination in Organ Procurement Policy

Jowei Chen

Federalism and the Commerce Clause: The Constitution Takes on Political Correctness

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4 **Sanctions to End Apartheid: The Political Economy of United States-African Relations**
Stephen Balkaran, M.A.
Professor Balkaran, formerly of the African National Congress and the United Nations, is currently an Adjunct Professor of Political Science & Pre-Law at Capital College in Hartford, CT.

The author examines U.S.-South African relations, with a particular focus on apartheid's role in imposing economic sanctions.

12 **Organ Failure: Reassessing the Role of Information Dissemination in Organ Procurement Policy**
Jason Lott,
Jason is philosophy and political science major at the University of Alabama at Birmingham

With regards to organ procurement policy, the author questions the prevailing mentality that information equates to a greater likelihood of donation

17 **Federalism and the Commerce Clause: The Constitution Takes on Political Correctness**
Jowei Chen,
Jowiei is a freshman in Berkeley College, majoring in Political Science.

In light of Congress' more recent abuses of its Commerce Clause power in enacting politically fashionable crime laws, the author asesses the Supreme Court's restraining of Congress to defend constitutional principles of federalism and enumerated powers.

Sanctions to End Apartheid: The Political Economy of United States-African Relations

Stephen Balkaran

THE UNITED STATES, LIKE MOST COUNTRIES, HAD PAID LITTLE ATTENTION TO THE apartheid system at the time of its inception; moreover, its underlying philosophy was similar to that of South Africa with regard to their relations with America's blacks. With the rise of the civil rights movement in the United States and the independence movement against colonial rule in Africa, voices were raised within the United States and in the United Nations against apartheid. The economic history of the United States and South Africa dates back to the discovery of gold and diamonds in the Republic. Yet it was not until the 1980's that U.S. policy towards the Republic took on a direct and new meaning. U.S. policy toward South Africa since 1962 has been shaped largely by strategic and economic concerns, including the preservation of access to South Africa's immense mineral resources and the protection of markets and investments. For three decades, various United States administrations have consistently resisted calls from within and outside South Africa for economic sanctions. Instead, they have argued for the importance of trade and investments as a means of encouraging change in South Africa's policy of apartheid.

United States policy was primarily concerned with American industries' access to South Africa's economic resources. With the rise of the United States as a world power, these economic interests later became a security interest. Strategically South Africa fought on the Allied side in both World Wars and was considered an asset for the West in preventing Communist aggression during the Cold War.

South Africa's white-controlled economy relied heavily on foreign investment and therefore was extremely vulnerable to economic sanctions. U.S. capital continued to expand even as apartheid's repression intensified. In the 1970s South Africa had absorbed about 50 percent of U.S. direct investment in Africa as a whole, excluding oil investments. By 1982, U.S. investment in South Africa amounted to $14 billion, including approximately $8 billion in the country's mining sector. Despite anti-apartheid rhetoric that waxed and waned through the Kennedy, Johnson, Nixon, Carter, and Reagan eras, most U.S. policymakers, corporate and political, treated minority-ruled South Africa as the regional power center to be favored and protected from destabilizing forces.[1]

However, South Africa's introduction of its new policy of apartheid somewhat complicated relations with the United States. Despite the racial policy of apartheid, the United States and South Africa continued diplomatic and economic communication during the 1960's without heavy opposition. The U.S. maintained its economic and strategic relations while on the other hand publicly condemned apartheid on morals grounds. Economic and security interest

dominated U.S. policymaking and thus prevented any serious sanctions from being imposed on the Republic. This overlooking of crucial internal developments and practices in South Africa was evidently tied to the desire to maintain and preserve US interest in the Republic. The United States had more to lose if it chose to interfere with the political relations in South Africa. However, the pressures from international communities began to build starting in the early 1960's; the international community voiced their disgust and called for economic sanctions and an arms embargo against South Africa. Increased vocal support emerged for the imposition of economic sanctions and an arms embargo against South Africa. It wasn't until the collapse of Portuguese colonialism and the Soweto uprising that Western countries began to take a closer look at events in South Africa. In light of these events, there has been a long-standing debate on the effectiveness of economic sanctions. The United States and other governmental organizations have frequently used economic sanctions to influence policies or behaviors of a target state. Yet, it must be emphasized that the United States' economic policy alone did not end the apartheid system in South Africa. Instead, various other components played their role for the eventual abolishment of the Republic's racial policies. Nonetheless, pressure applied by the United States sanctions forced South African authorities to dampen any expansion in domestic demand and therefore any surge in economic activity.[2] This paper addresses the following central aspects of U.S. policy toward South Africa: embargoes, economic, financial, social and regional sanctions. The making of U.S.-South African policy appears as a series of responses to South Africa's changing domestic situation and to its relations within the region and its racial segregation policies towards South African blacks.

The U.S.-South African relations continued to flourish during the 1960's without any great concern towards the Republic's racial policy of apartheid. It has often been said that America's approach to South Africa and its white-ruled neighbors during the pre-1975 period can be characterized as "non-crisis policy."[3] With the Sharpeville massacre in 1960, the Kennedy administration followed a wave of negative reaction around the country. Although he condemned the action, he did little to affect any change in U.S.-South Africa relations. The United States continued to maintain strong relations with the Republic despite blatant segregation practices. It also expected South Africa to contain international aggression in the region.

With the election of the Jimmy Carter in 1976, the U.S.-South African relations took on a new focal point. The 1976 election was the first in the U.S. in which African issues played any prominent role.[4] President Carter sought to concentrate directly on South Africa in response to a growing amount of African-American interests in U.S. policy toward the Republic. Many have argued that his southern background played a key role in his interest in South Africa. In the mid 1970s, mounting international pressure for the U.S. to consider economic sanctions against South Africa was rejected. The Carter administration vetoed United Nations resolutions urging reduction of economic ties with South Africa. Responding to critics of U.S. policy in South Africa, President Carter emphasized the positive side of economic relations and enlight-

The U.S.-South African relations continued to flourish during the 1960's without any great concern towards the Republic's racial policy of apartheid.

ened free enterprise as a positive force for change in South Africa.

His view of the Republic's racial policies became more important with the work of his advisor Andrew Young and his advocacy of human rights. The notion that African-Americans should play a greater role in shaping U.S-African policy became a standpoint on his campaign and his administration. Carter's views on the South African issue became more pronounced as he appointed several African-Americans as members of his advisory staff. Andrew Young, former aide to Martin Luther King became the U.S. ambassador to the United Nations and as such publicly attacked the Republic's government. Young and the Carter administration voiced support for more stringent arms embargoes and denial of tax credits and advantages for U.S. business in South Africa.

Even though Carter's approach did not break the traditional trend of U.S. policy towards South Africa, he did address the apartheid question of an otherwise indifferent U.S. audience.

In 1976 Rev. Leon Sullivan, a black member of General Motors Corporation Board of Trustees introduced the "Sullivan Principles" to the Carter administration. These principles carried a voluntary code of conduct for U.S. firms operating in South Africa.

The principles were as follows:

1) Non-segregation of the race in all eating, comfort, and work facilities.
2) Equal and fair employment practice for all employees.
3) Equal pay for all employment doing work for the same period of time.
4) Initiation and development of training progress that will prepare, in substantial numbers, blacks, coloreds, and Asians for supervisory, administrative, clerical and technical jobs.
5) Increasing the number of blacks, coloreds, and Asians in management and supervisory positions.
6) Improving the quality of employee's lives outside the work environment in such areas as housing, school, and recreation etc.

Despite the effort made by the Sullivan Principles and the Carter administration, there was little improvement in the working conditions for black workers employed by U.S. firms in South Africa. Although blacks, coloreds, and Asians represented some 63% of the work force, only .07% were in positions of direct supervision over their white colleagues. In 1982 and 1983, the percentage of black employees holding either management or supervisory post actually declined.[5]

Even though Carter's approach did not break the traditional trend of U.S. policy towards South Africa, he did address the apartheid question of an otherwise indifferent U.S. audience. In addition, in order not to antagonize the Americans with vested interests in South Africa, Carter also sought to protect U.S. economic interest in the Republic.

When Ronald Reagan entered office in 1981, his administration undertook a review of U.S. policy in South Africa. South Africa cheered over his victory hoping that sanctions and other boycotts would now be unlikely. The Reagan administration's objectives in South Africa were similar to its former predecessors. His strategy of "constructive engagement" was, however, different and highly controversial. The Reagan team chose to work secretly with the South African government stressing common strategic interest, emphasizing with white fears, and utilizing a unilateral rather than a multilateral approach to diplomatic negotiations.[6]

Throughout his tenure, President Reagan studiously avoided criticizing the South African government, repeatedly praising the South African Administration for making substantial reforms despite the overwhelming evidence of the continued and extensive exploitation and oppression of the black majority in South Africa. In the mid-1980s, public concern about the Reagan Administration's policy toward South Africa was rapidly translated into political action by a broad-based anti-apartheid movement across the United States. The movement was marked by protest demonstrations in major cities and on college campuses and by a call for tougher U.S. policies toward Pretoria. This campaign included boycotts of banks that made loans to South Africa, the sale of stock in U.S. firms operating in South Africa and the withdrawal of U.S. firms with subsidiaries there.

The underlying rationale of Reagan's "constructive engagement" policy was to promote and improve relations with South Africa. Therefore, Washington could expect cooperation in two key areas: a settlement in Namibia, and intended reform in South Africa. The Reagan administration hoped that the South African government would commit either to a withdrawal from Namibia or to significant reform of the apartheid system. Despite the attractiveness of Reagan's proposed compromise, South Africa did not cooperate. Namibia still remained under South African rule and the question of reform in the Republic received little attention from the South African government. The South African government refused to address the central issue of black's political and human rights. President Reagan continued expanding military, diplomatic and economic ties with the Republic and portrayed South Africa as a positive ally that supported the American efforts and interest in both world wars. On the other hand, the Reagan administration refused to advocate the actions of black leaders who championed the imposition of boycotts and sanctions on South Africa. At the same time, however, the United States violated the United Nations sanctions prohibiting trade and sale of military equipment to the Republic.

In Short, it was the Reagan policy to exploit the economic advantages to be had in dealings with South Africa, at no costs of reforming its internationally denounced internal system of racial segregation. Reagan's "constructive engagement" did everything to oppose America's instincts to exert its influence to end or dampen the apartheid system. In fact, Reagan's policies actually strengthened apartheid by promoting, or at best ignoring oppression of South Africa's majority blacks. Constructive engagement had several faults; it gave South Africa the freedom to overrule its internal opposition and unrestricted freedom to launch aggressive missions against neighboring African nations. Reagan's unpopular view of South Africa, the conflicting convictions within his administration, and the Republican Party itself resulted in his diminished support in Congress. Popular pressure in the U.S. resulted in legislation in 1985, which forced the Reagan administration to implement tougher actions against South Africa. This in turn led to an anti-apartheid movement within the administration and public outcry for more effective actions to be taken by the U.S. government. Finally with the failure of "constructive engagement" to influence South Africa to reform its apartheid policies, the Comprehensive Anti-Apartheid Act (CAAA) in 1986 defined America's policy regarding

The underlying rationale of Reagan's "constructive engagement" policy was to promote and improve relations with South Africa.

South Africa.

The passage of the above Act officially marked the end of the "constructive engagement" plan of Reagan's quiet diplomacy. The CAAA prohibited U.S. trade and other socio-economic relations with South Africa and also levied other developed countries to do likewise. The Act can be divided into two distinct parts. The first outlines the sanctions to be imposed against the South African regime; the second details the parameters for the future U.S. relations with the African National Congress.[7] The Act maintain the distancing of the U.S. from the Republic and closer emphasis on the victims of apartheid. This historic legislation passed over the veto of a popular President mandated selective actions against South Africa. The legislation demolished traditional U.S. policy premise holding that the threat of sanctions against South Africa was more effective than sanctions themselves. With the impact of the CAAA Act, the U.S. was now able to levy various sanctions against the Republic in order to force it to remove the racial barriers and end the apartheid policies.

ECONOMIC SANCTIONS

The United States has played, and will continue to play a crucial role in the political and economic development of South Africa. Any major change in U.S. policy toward greater support or opposition can result in a dramatic change in the politics of apartheid. U.S.-South African economic ties have been cemented over the past decade figures are frequently cited over $2 billion in direct U.S. investment in South Africa.[8] The United States has now become one of the biggest trading partner for South Africa and U.S. economic relations plays a key role in everyday life in that country. As a result economic embargoes imposed by the U.S. dampen expansion of the Republic's already impoverished domestic economy.

Economic sanctions have been imposed by the U.S., with the effect of removing the previous ban on investment in South Africa. The Sullivan Principle tax breaks and credit given to firms, which operate in South Africa, were now removed. This campaign started early in the 1970's when the Episcopal Church began to emerge as a powerful lobby enterprise against corporate involvement in South Africa. The principle targets were Exxon, General Motors, Mobil Oil and various other companies. Within the course of five years United States direct investment in South Africa declined by one-half with little or no new investment, as shown in Table 1.

TABLE 1.

United States Firms in South Africa.

Year	Firms Leaving	Firms Starting
1983	6	3
1984	7	2
1985	28	0
1986	27	0
1987	128	0

Source. United Nations Handbook on South Africa, 1988.

Mobil Oil reported that the company's pull-out from the Republic was primarily due to the increase tax credits, and home pressure to end investment in South Africa. Trade embargoes against South Africa also became a key principle in economic divestment. Given the dependence and vulnerability of the South African economy, trade sanctions have had an immense effect. It appears very probable that trade sanctions will continue to be directed more to purchases than to sales to the Republic. Yet, since the Republic economic welfare has long relied on imports of external capital goods, imports restrictions themselves constitute a severe impediment to its economy. Divestment and trade embargoes with the United States on new investment in the Republic exacerbate the situation. The result is an apparent ceiling on

growth with the loss of both imports and exports to the outside world, as shown.

TABLE 2.
Individual Countries' Exports to South Africa (in percent)

Country.	'82	'83	'84	'85	'86	'87
U.S.A.	1.12	1.06	1.04	.53	.52	.50
U.K.	2.16	1.83	1.72	1.28	1.16	1.12
France	.67	.52	.52	.38	.32	.30
W.Germ.	1.44	1.15	1.36	.92	.80	.79
Italy.	.74	.65	.71	.42	.36	.36
Japan.	.78	.70	.66	.31	.34	.45

Source: IMF, Direction of Trade Statistics, cited in South Africa Trends. 1988 pg 15

TABLE 3.
Individual Countries' Imports from South Africa (in percent)

Country	'82	'83	'84	'85	'86	'87
U.S A.	.08	.78	.76	.60	.64	.32
U.K.	1.32	1.17	.94	1.16	.96	.73
France	.64	.56	.65	.60	.38	.36
W. Germ.	.82	.70	.65	.60	.72	.57
Italy	1.85	1.77	1.75	1.75	1.92	1.49
Japan	1.42	1.28	1.20	1.44	1.79	1.80

Source: IMF, Direction of Trade Statistics, cited in South Africa Trends, p.15

The U.S General Accounting Office reported that American sanctions cut South African exports by some $417 million in 1985.[9] The Pretoria government was not only unable to recover these losses by increasing trade to other countries, but also lost additional trade in these markets. This resulted in a total lost and reduction in goods and services under trade embargoes to some $469 million in 1985.[10] Prohibition of exports of computer services to any agency was a crucial undermining factor in restricting the viability of South Africa's internal bureaucracy. U.S. agencies were prohibited from buying or selling technology or promoting trade or tourism with South Africa. Landing rights for commercial airlines from South Africa to the U.S. were suspended, thus severing direct links with the U.S. These along with several other economic sanctions enabled South Africa to rethink their political and economic structure as a result of their deteriorating economic conditions. Economic sanctions had now undermined the notion that "business as usual" is possible in South Africa without major political change. Divestment contributed to an overall atmosphere of uncertainty, which has been damaging to the confidence of an already struggling economy.

FINANCIAL SANCTIONS

Financial investment in South Africa became a main standpoint in U.S. economic policy towards South Africa. By the early 1980's South Africa total foreign debt was approximately $7.6 billion, of which U.S. banks held nearly one-third of that amount.[11] The combination of the banker's sanctions and national prohibition on new investment on South Africa has severely constrained the Republic ability to gain access to capital. In 1985 Chase Manhattan refused to pardon its loans to South Africa, which was quickly followed by other banks in the U.S. This resulted in large capital accounts deficit to repay outstanding maturing loans, which are primarily owed to U.S. banks and other financial institutions. In other words the South African government must run a large balance of payments surplus to meet its international debt and interest payments. From 1985-86 there has been a general prohibition of loans by various American financial institutions, as banks began demanding repayment of their loans, a scramble for dollars ensued. This shortage of U.S. dollars and the over supply

of the rand (South Africa's monetary unit) caused its value to decrease rapidly. Ironically, South Africa's dependence on western finance proved to be its downfall, leading to the virtual cessation of capital inflows. The deprecation of the rand provided considerable economic change and domestic investment. The first three-quarters of 1986 had depressed it depressed by 27% as compared to its average level in 1981-82.[12]

An acute financial crisis broke out when the South African government declared a state of emergency 1984. There was heavy selling on the Johannesburg Stock Exchange and capital flight; as a result of the repayment of loans back to international banks fell short. Shaky business confidence has caused a steady outflow of private capital from South Africa since 1982. Between 1982-85 foreign investors withdrew $365 million from South Africa through the sale of shares on the stock exchange.[13] This financial crisis later led the government to announce a four months moratorium on the repayments of South Africa's $14 billion foreign debt, which was due at the end of the year. With the dramatic deterioration in the value of the rand, South African reserves were far too limited to repay the massive foreign debt. The panic was further exacerbated when political pressure from the U.S. forced other banks to crush the Republic's credit ratings.

Denial of South African athletes to participate in the 1984 Olympics became the high point of international cultural sanctions.

The prospects for net capital inflows were now uncertain as financial divestment presented huge net capital outflow. As a result South Africa's total external debt in 1984 exceeded some $20 billion, with only half of that waived by agreed provision for deferral repayment. With all these financial constraints, the South African domestic economy faced inflation due to the decreased value of the rand and the economic embargoes burdened the Republic. The accretion of costs, premises, lost investment associated with sanctions had taken effect slowly but surely and destructively. With the disruption of monetary stability by the manipulation of gold prices, the American dollar price of gold, which contributed some 45% of South Africa export earning, dropped considerably. The price of gold dropped from $800 to $300 an ounce, and the general state of uncertainty arose as both internal and external developments were affected. The depreciation of the rand, which had lost half of its value against major currencies of the world, played a crucial and decisive role towards financial and economic instability.

SOCIOCULTURAL SANCTIONS

Despite the various economic and financial cutbacks of even a greater importance are the cultural sanctions that were placed on the Republic.

The U.S. severed sporting Links and South Africa's participation in major international events were forbidden. Pressure was now placed on athletes not to perform in the Republic until its racial policies came to an end. Denial of South African athletes to participate in the 1984 Olympics became the high point of international cultural sanctions. Additional pressure was also placed other international sports, such as rugby, cricket, boxing and golf, as well as lifetime ban on those athletes who defy the rules and competed in South Africa.

American Artist for Apartheid be-

came a standpoint between American and other musicians, who vowed not to perform in South Africa until its racial political system came to an end. The idea of playing in the South African resort of Sun City or any other resort in the Republic violated trust among musicians in the music world. Negative publicity on those who had defy and perform in South Africa had been the focus of "Sun City" record album and videotape which made an anti-apartheid musical statement.

CULTURAL

The contributions of Black Americans towards the demise of apartheid in South Africa cannot be forgotten. The African Methodist Episcopal Church, the NAACP, and the Black Caucus etc. urged all members of American community to officially boycott trade and other activities unless their "brothers" are free from racial oppression. Congressional Black Caucus, Randall Robinson' TransAfrica, Jesse Jackson' Rainbow Coalition, and numerous community leaders persistently supported South Africa struggle for freedom. The above-mentioned organizations retorted to practices such as demonstrations, donations, protest, boycotts, divestment campaigns and other forms of protest, which efforts eventually culminated with capturing the attention of the general public.

Universities across the country were now embracing the struggle as they did in the anti-war Vietnam era. Constant protest, lobbying and boycotts played a key role in U.S-South African education exchange. The U.S. were now increasing the amount of scholarships to black South African students to study in the U.S, with the aim of educating its new generation who were deprived of the benefits of an university experience at home as a result of apartheid.

CONCLUSION

Sanctions whether political, financial, economic or socio-cultural have staggering effects. Looking at South Africa, sanctions including protest, boycotts, divestment as well as other forms have played a key role in demise of its national economy and thus preventing any further economic activity. While it needs to be emphasized that the sanctions alone did not end apartheid nonetheless the pressure applied by these sanctions has forced South African authorities to reconsider its racial strategy. Economic relations with South Africa from 1975-90 saw a new direction in U.S. policy. Changes in the style of U.S policy were clearly a major factor with South Africa and as a result political diplomacy became evident. This shift in U.S policy was partly due to the nature of U.S. economic relations with South Africa and the interest that followed. Apartheid had now become an household name in the U.S; it had become both a domestic and foreign policy of the U.S. All of America raised the issue of race, and the denial of basic human's rights became the focal point in American politics.

NOTES:

1. U.S. General Accounting Report. 1986 p 6
2. Kevin Danaher, *The Political Economy of U.S Policy Towards South Africa.* Boulder, Colo: Westview Press. 1985. p 3
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9. Kevin Danaher, *The Political Economy of U.S Policy Towards South Africa.* Boulder, Colo: Westview Press. 1985. p 75
10. Ibid., p 75.
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12. *Human Rights Quarterly*, May 1989, p 249-54.
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Organ Failure: Reassessing the Role of Information Dissemination in Organ Procurement Policy

Jason Lott

THE OFFICIAL LIST OF AMERICANS AWAITING SINGLE OR MULTIPLE ORGAN DONATION is tens of thousands of persons strong. Given the lack of available transplants these patients, often in life-threatning medical conditions, are further burdened with little hope to receive transplants in the future. There are simply not enough organs to provide for all who are "officially" in need, that is for those people listed on the various United Network for Organ Sharing (henceforth UNOS) waiting lists.[1] Worse yet, there are thousands of patients in need organs who are not listed with UNOS, as physicians are normally limited to only refer their worst cases for transplant, bypassing others who are less at risk to suffer serious damage but are nonetheless suitable transplant recipients.[2]

If past trends continue, the gap between the number of transplantable organs available and the number of potential transplant recipients will continue to widen. Indeed a more pronounced increase is expected of the latter, since evolving medical technology continues to provide excellent life-extending care to the elderly, who in turn face greater chances of organ failure due to their advanced age.[3] Regardless of the advances of medicine in its potential to prolong the viability of existing tissues, doctors are still unable to recreate entire organ systems. Under such circumstances optimism is an unrealistic hope for a person in need of an organ transplant within the current system. And the reason this system doesn't work? Simply put, people don't donate!

UNOS and other US organ procurement agencies believe that people do not donate because they are poorly informed about the organ shortage problem. Accordingly, it is the claim of these institutions that these shortages will decrease (and hopefully disappear altogether) as more people become aware of the organ shortage problem and their supposed role/obligation in its solution.[4] The official mission statement of UNOS, for example, proposes to "advance organ availability and transplantation... through education, technology, and policy development,"[5] and an invitation is extended to all to join UNOS in its continuing efforts to "increase organ donation through education and awareness."[6] Thus informing the public is the motivating strategy behind all US efforts to increase the pool of transplantable organs, despite that, as discussed below, information dissemination appears to have no causal influence within the current organ procurement system.

BACKGROUND

So how exactly does the current system work? Organs are procured according to the Uniform Anatomical Gift Act of 1987, which allows any mentally competent person over the age of 18 to decide whether or not to donate his or her organs for transplantation. This act also establishes the con-

ditions/boundaries under which organs can be procured. It mandates, for example, that physicians "be required to notify the [present] hospital of a potential organ donor"[7] and then "follow up by informing the family of its options concerning donation of the deceased's organs."[8] The selling of organs as well as any derivation of profit from the activity is explicitly forbidden by this act.

Acting on the side of the demand, the Uniform Anatomical Gift Act established UNOS, an independent organization responsible for distributing transplantable organs to potential recipients across the nation—essentially a national clearinghouse for organs. "Potential recipients" refers to those persons who are officially on the UNOS waiting list for organ transplantation, where each possible organ transplant (heart, lung, kidney, etc) has its own list. In order to be received on the list, one must (1) convince a physician that a transplant is truly needed in order to promote or sustain life, and (2) be treated by a physician capable of supervising the donation petition process..[9] The physician then refers the patient to one of 200 transplant hospitals in the US, where a transplant team evaluates each candidacy for a transplant.[10] Unfortunately, gaining access to the list is often as much a political foray as it is a medically objective process, with such factors as social worth competing with measures of survivability. Questions such as 'Is Transplant Candidate A worth more to society than Transplant Candidate B?' and 'How likely is it that Transplant Candidate A will live longer than Transplant Candidate B upon receipt of an organ? must be answered in appropriating the priceless gifts to the petitioners.[11] But for those lucky enough to place their names on the list, a points-based distribution system determines who will be awarded organs. Objective factors such as immunohistocompatibility between donor and recipient, amount of time spent on the waiting list, age, chance of survival, etc., play the most important part in picking organ recipients, although subjective matters of money and social standing sometimes unfairly sway the distribution system.[12]

More people are dying each year during the extended waiting period, which has increased from 1663 in 1989 to 4860 in 1998.

The UNOS web site (http://www.unos.org) houses a database of organ donor and recipient information ranging from the number of transplantable organs available, number of patients on the various organ waiting lists, survivability rates, etc. All in all, the numbers do not look promising. For instance, UNOS maintains that "every fourteen minutes a name is added to the national organ transplant waiting list,"[13] although the pool of potential donors essentially remains static. The combined number of cadaveric and living donor organ donations increased from 15195 in 1989 to 22497 in 1998, while the number of waiting list registrants skyrocketed exponentially from 19095 to 64373 during that same period.[14] As one would expect, this has dramatically increased the average time a patient spends on a particular organ transplant waiting list; the mean waiting time for a kidney transplant, for example, has more than doubled from 444 days in 1989 to 938 days in 1996.[15] This also means that more people are dying each year during the extended waiting period, which has increased from 1663 in 1989 to 4860 in 1998.[16] It is important to note that these numbers are artificially deflated since they only reflect the deaths of those on the official UNOS waiting lists and do not include deaths of unlisted patients.

INFORMATION FAILURE

More data and data analyses could be presented here; however, the above numbers adequately characterize the situation and force us to evaluate how the available number of transplantable organs might be increased. As mentioned above, the current approach involves heightening public awareness of the need for organs in hopes that more people will donate. According to UNOS, the key issue is to "educate the public about organ and tissue donation, correct misconceptions about donation and create a greater willingness to donate,"[17] . Consequently, in 1992 UNOS founded the Coalition on Donation to help achieve this goal.[18] This organization is essentially a public education ad campaign whose aim is "to ensure that every person in the U.S. understands the need for organ and tissue donation and accepts donation as a fundamental human responsibility."[19] Indeed, the Coalition on Donation describes itself as "the most comprehensive public action effort ever undertaken by the transplant community,"[20] encompassing a variety of media programs targeting local communities nationwide in hopes of removing the deeply rooted barriers against donation.

In other words, does a public well informed of the organ shortage problem imply a public willing to donate enough organs to resolve that problem?

Have these programs worked? Apparently not. The ratio of persons who need organs to the number of persons donating them has continued to increase, especially during the last decade –a period when both UNOS and the Coalition for Donation have had their strongest influence. The more important question, then, is whether the failure of these programs is due to their rudimentary stages, in which case an optimistic success is to be observed in the future once people become aware of the problem. Another point in need of resolution is whether the reluctance to donate will continue in light of any informative efforts over an extended period of time. In other words, does a public well informed of the organ shortage problem imply a public willing to donate enough organs to resolve that problem?

I believe the answer is no. Why? Because most people are already adequately informed about organ donation to the extent that the programs in question end up targeting only those people who are going to donate anyway. The decision to donate an organ is ultimately non-volatile, and does not hinge on access to statistics and other information indicating what will happen if one decides not to donate. Indeed most people are well aware that their altruistic donation (living or cadaveric) would do much to help others in need of organs, and yet organ shortages continue to increase. Nevertheless, the transplant community continues to operate within this information dissemination-dependent system.

Consider, for example, a recent article in the New England Journal of Medicine emphasizing the successful outcomes of non-directed kidney donations (kidney donations between complete strangers).[21] Gridelli and Remuzzi, authors of the article in question, de-emphasize the importance of genetic similarity between kidney donor and recipient and establish the groundwork for promoting non-directed donations as a means for increasing kidney supplies. In the past doctors were reluctant to perform such risky operations, especially in the absence of any medical evidence indicating transplantation efficacy. Today, however, the problem is more than obvious and looks hopeless rather than hopeful, consequently forcing members of the medical community, such as Gridelli and Remuzzi, to reevaluate certain popula-

tions that remained previously ignored as organ sources. Armed with medical support, they hope that more lives can be saved as implementation of non-directed donation becomes more popular in transplant centers in the US. Although "it is difficult to quantify the effect of these procedures,"[22] it is however possible that the waiting list for kidneys "could become substantially shorter."[23] Several transplant centers have since adopted institutional policies regarding non-directed donation/organ procurement.[24]

This recent change in transplant policy is interesting because it will most likely prove to be completely useless. Do Gridelli and Remuzzi believe in a sub-population of potential donors who will be swayed by their scientific findings? Are there people who have always wanted to donate their organs to complete strangers but have not done so only because they were waiting for medical evidence supporting procedural efficacy? Once again information is assumed to be the salient factor in influencing personal decisions to donate an organ; if only people had information indicating that non-directed organ donation is safe, so the argument goes, then more people would become non-directed donors. Is it likely that anyone will be convinced by this argument? I highly doubt it.

From this example we see that the organ shortage problem is very similar to the problem of world hunger: everyone knows it exists and everyone knows something can indeed be done about it. But unlike the effort to alleviate hunger, whose major selling point is that it requires so little on each individual's behalf ("Just fifty cents a day..."), living organ donation in particular requires a much larger portion of personal resources. Living kidney donors, for example, face a serious operation and substantial recovery period, along with associated medical expenses. Is it reasonable to think that providing people with more information about current organ shortages and transplantation techniques will convince them to donate one of their kidneys when most people are reluctant to part ways with the change in their pockets? This probably explains why most living kidney donors and lobectomy patients are closely related to the organ recipient and why living organ donations to complete strangers are both rare and, in some sense, strange.

The main point here is not about non-directed kidney donations and transplant efficacy. The above example only illustrates the general belief within the transplant community that the organ shortage problem can be solved by merely providing the appropriate information to the public. This belief in information is so strong that all transplant policy is based on it, and organ procurement procedures emphasizing other factors (such as those relying on financial incentives) are immediately rejected. This stubborn, tunnel-vision paradigm is doomed to fail those it intends to serve, and more and more lives will be lost until its eventual collapse.

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CONCLUSION

Clearly, the motivating forces behind organ procurement must be reassessed, and the role of information dissemination must be de-emphasized if not abandoned altogether. Perhaps the first step should be recognizing that people are generally selfish when it comes to their body parts, and that no amount of information,

statistics, graphs, or medical opinions will change their convictions about organ donation. This is not to say that altruistic organ donors do not exist, but that they are greatly outnumbered by persons who do not care about people on the UNOS waiting lists, except insofar as acknowledging and expressing sympathy for their situation. It is unfortunate indeed that lives are gambled and lost within a system that preaches altruism and information to a disinterested populous. Yet, it is exactly what we must face and come to accept if any progress toward a new, better system (one that does not depend primarily on "feel good" incentives) is to be made. And until we discuss, construct, adopt and finally implement this new system, whatever it may be, we can all look forward to logging onto the UNOS web site from time to time and watching the waiting list numbers—and deaths—continue to rise.

NOTES:

[1] UNOS is the official US government proxy for organ donation/distribution, Online: http://www.unos.org

[2] David E. Jefferies, "The Body as Commodity: The Use of Organ Markets to Cure the Organ Deficit," 5(2) *Indiana Journal of Global Legal Studies* 621 (Spring 1998), Online: http://www.law.indiana.edu/glsj/vol5/no2/13jeffer.html

[3] Gregory E. Pence, *Classic Cases in Medical Ethics*, 3rd ed., (New York, McGraw Hill Inc., 2000), 322-23.

[4] Online: http://www.unos.org/frame_Default.asp?Category=Givenow

[5] Ibid.

[6] Ibid.

[7] Jefferies, 628

[8] Ibid.

[9] Pence, 329.

[10] Online: http://www.unos.org

[11] Pence, 327-29.

[12] Ibid, 329.

[13] United Network for Organ Sharing, Online: http://www.unos.org

[14] United Network for Organ Sharing, Online: http://www.unos.org/Data/anrpt99/ar99_data_01.htm

[15] United Network for Organ Sharing, Online: http://www.unos.org/Data/anrpt99/ar99_table08.htm

[16] United Network for Organ Sharing, Online: <http://www.unos.org/Data/anrpt99/ar99_table09.htm>.

[17] United Network for Organ Sharing, Online: http://www.unos.org/frame_Default.asp?Category=About

[18] Coalition for Donation, Online: http://www.shareyourlife.org

[19] Ibid

[20] Coalition for Donation, Online: http://www.shareyourlife.org/done.htm

[21] Bruno Gridelli and Giuseppe Remuzzi, "Strategies for Making More Organs Available for Transplantation," 343(6) *New England Journal of Medicine* 404-09 (August 2000).

[22] Gridelli and Remuzzi, 409.

[23] Ibid.

[24] Arthur J. Matas, "Nondirected Donation of Kidneys from Living Donors," 343(6) *New England Journal of Medicine* 433-36 (August 2000).

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Federalism and the Commerce Clause: The Constitution Takes on Political Correctness

Jowei Chen

HATE CRIMES AGAINST WOMEN AND VIOLENCE AT PUBLIC SCHOOLS WERE HARDLY the contentious issues of the day for the Founding Fathers in Philadelphia during the summer of 1787. Rather, they debated the need for a federal government substantially stronger than that of the disastrous Articles of Confederation. By the end of the summer, the Constitutional Convention had agreed upon a federal system of enumerated, delegated, and limited powers.

The Constitution, in short, would grant specific powers to the Congress, the President, and the judiciary; the new federal government would be prohibited from exercising any other powers not specifically enumerated. Among those authorities given to Congress was the power to "regulate Commerce...among the several states." This Interstate Commerce Clause, the Founding Fathers decided, was a delegation necessitated by the desire to enable the maintenance of a viable economic union.

On September 13, 1994, Congress passed the Violence Against Women Act (VAWA) in conjunction with a host of other politically fashionable crime laws, acquiescing to the demands of radical feminists who sought national attention for their special-interest agendas. VAWA declared, among other things, that every violent crime committed in part because of the victim's gender could now be subject to a federal civil lawsuit for monetary awards.[1] VAWA meant, essentially, that feminist advocacy groups such as the National Organization for Women (NOW) could file high-dollar federal lawsuits against men suspected of committing violent crimes against women. Furthermore, because such a lawsuit is a federal civil action, not a criminal charge, it is entirely possible for a man to be found innocent of criminal charges and still be sued for millions of dollars by feminist legal groups, for the burden of proof in a civil lawsuit is much lower than in a criminal trial. Finally, NOW was particularly ecstatic with the passage of VAWA because federal lawsuits are often more financially profitable than the civil lawsuits normally filed in state courts.

Despite the political popularity of the Violence Against Women Act, however, Congress faced one difficult problem. VAWA was a Congressional regulation of privately committed crimes against individuals, intended to combat and deter violent crimes committed against women. The Constitution, unfortunately, does not grant Congress the general power to regulate crime. The power to punish and deter crime is the duty of the individual states, and the Constitution has never been construed or amended in a manner that permits the federal government to punish violent crimes between individuals. The general handling of most criminal issues is not a power enumerated to the federal government, but remains Constitutionally reserved for the individual state governments. For Congress to exercise a power it does not possess would be unconstitutional, no matter how popular such legislation might be.

Nevertheless, the political clout of VAWA compelled Congress to employ the most extraordinary but unsurprising of tactics to overcome this problem of unconstitutionality. Congress produced piles of findings in 1994 claiming that violence against women was a national epidemic so widespread that it had a "substantial adverse effect on interstate commerce."[2]

For example, violence against women, Congress claimed, was a fear that prevented women from "using public transit alone after dark," which adversely affects the economy.[3] The same fear also prevented women from "going to the movies alone after dark," thus reducing ticket sales.[4] Women who are victimized by violent crimes also spend a substantial amount of money on health care and criminal justice costs.[5] Therefore, Congress decided, violence against women amounted to an economic problem substantially affecting interstate commerce, meaning that Congress had the power to regulate such crime and was justified in doing so through the Interstate Commerce Clause.

It was insulting enough that Congress reduced the plight of female victims of crime to a mere matter of monetary costs – Congress' claim that violence against women costs too much money implies that Congress cares about female victims only insofar as they hurt the economy. Even worse, however, VAWA implied that state justice systems are either not needed or not asked to perform their duty to regulate all general crime – a statement with extremely dangerous consequences, for federal courts are simply not efficient enough to take jurisdiction over all cases of violent crime against women.

Therefore, Congress decided, violence against women amounted to an economic problem substantially affecting interstate commerce, meaning that Congress had the power to regulate such crime and was justified in doing so through the Interstate Commerce Clause.

In the spring of 1995, Christy Brzonkala, a white female student at Virginia Polytechnic Institute, claimed that during a party, she had engaged in nonconsensual sex with two black football players, for she had been drinking.[6] Brzonkala later named Antonio Morrison and James Crawford as the alleged rapists. Moreover, Brzonkala claimed that the rape had occurred approximately seven months ago, thus explaining the absence of any physical evidence. Charges were filed at the university and state levels. A state grand jury and the Virginia Tech administrative hearings both found insufficient evidence to substantiate the allegations of rape, even despite Virginia's traditionally unfair due process for black men accused of raping white women.

In December of 1995, over fifteen months after she was allegedly raped, Brzonkala, having been rebuffed at both the university and state levels, filed an $8.3 million federal civil lawsuit under the Violence Against Women Act and became the first to sue under the new law.[7] Seeking punitive damages against the two black football players, Brzonkala's lawsuit argued that shortly after her alleged rape, she had "become severely emotionally disturbed and depressed." Her eventual dropout from Virginia Tech was also cited as a result of the alleged rape. Brzonkala's attorney, Eileen Wagner, argued that the federal civil remedy of VAWA was needed by Brzonkala precisely because the state courts had failed to sustain her allegations. According to Brzonkala, Virginia's finding of insufficient evidence against the alleged black rapists indicated that the state courts possessed "pervasive bias" against women.[8]

The U.S. District Court in Roanoke, however, dismissed the $8.3 million lawsuit in 1996, ruling that the civil remedy of VAWA was unconstitutional, for Congress lacked any authority to regulate general gender-based crimes.[9] Upon appeal, the 4th Circuit Appellate Court in Richmond eventually voted 7-4 *en banc* in 1999 to dismiss the lawsuit on the same grounds.[10] Brzonkala's attorney appealed once again to the Supreme Court, which heard, in January of 2000, the cases *Brzonkala v. Morrison* and *United States v. Morrison* (the Clinton Department of Justice had intervened to defend the Constitutionality of VAWA).

Before the Supreme Court, Brzonkala, represented by the National Organization for Women, and the U.S. Department of Justice argued that Congress' enactment of VAWA was justified on two constitutional grounds. First, they contended, as Congress possesses the authority to regulate interstate commerce and violence against women has effects on interstate commerce, Congress, therefore, must be permitted to regulate violence against women. Second, it was argued that VAWA was justified by the Fourteenth Amendment, which compels states to provide the "equal protection of the laws" and permits Congress to enforce such guaran-

tees. Because Congress had found "pervasive bias" in state justice systems against victims of gender-motivated violence, they argued, VAWA was justified as a congressional remedy for the alleged lack of equal protection.[11]

The Fourteenth Amendment was given relatively less attention, for it has long been settled by the Court that the Fourteenth Amendment does not grant Congress authority to regulate purely private conduct, precisely what VAWA attempted to punish. The *Civil Rights Cases* of 1883 had already clarified this distinction in striking down the Civil Rights Act of 1871.[12]

The Commerce Clause justification, however, was given more serious consideration, for the authority to regulate interstate commerce has been broadened so extensively as to permit Congress to regulate anything from private restaurants[13] (*Katzenbach v. McClung*, 1964) to the production of wheat for home consumption[14] (*Wickard v. Filburn*, 1942). Nevertheless, the feminists' argument seemed bizarre at best – could the Commerce Clause justify regulating general crime simply because violence against women happens to have indirect effects on the economy?

A five-justice majority of the *Morrison* Court struck down the VAWA civil remedy as unconstitutional, holding that Congress' legislation was neither a Commerce Clause regulation nor justified by the Fourteenth Amendment. The Court's opinion, written by Chief Justice Rehnquist, observed that congressional legislation could be justified under the Commerce Clause only if the activity being regulated fell into one of three categories: 1) Congress may regulate the "channels of interstate commerce", 2) the "instrumentalities of interstate commerce," such as railways, may also be regulated, or 3) Congress may regulate an activity with a "substantial relation to interstate commerce," so long as the activity is an "economic endeavor."[15]

Violence against women, of course, falls into none of these three categories, and the feminists' claim that gender-motivated crime harms the economy was soundly rejected by the Court as an absurd and potentially dangerous precedent. Indeed, the Rehnquist opinion noted that if any activity with merely an incidental effect on interstate commerce could be regulated, then the Commerce Clause would justify congressional regulation of "any activity that it found was related to the economic productivity of individual citizens: family law (including marriages, divorce, and child custody), for example."[16]

The *Morrison* Court found little legal merit in the arguments of the Department of Justice and NOW, observing that their outrageous readings of the Commerce Clause "rely so heavily on a method of reasoning that we have already rejected as unworkable if we are to maintain the Constitution's enumeration of powers."[17] The Court found that the feminists' legal argument appeared to be utterly ignorant of the Constitution's carefully defined balance of powers between the federal government and the states and of the Constitution's construction of powers specifically delegated to Congress. If Congress could regulate anything with an indirect, incidental effect on interstate commerce, then it might as well intrude so far as to dictate the sleeping hours and meals of factory workers, for these, too, affect worker productivity, which, in turn, affect the national economy. Indeed, under the feminists' argument, Congress could also prohibit abortions, for they affect health care costs, thus substantially burdening the national economy.

The *Morrison* Court preserved the understanding of enumerated powers by preventing Congress from ignoring all constitutional limits on its authority, but the Court relied heavily on its 1995 decision in *United States v. Lopez*. *Lopez* struck down another politically correct crime law, the Gun-Free School Zones Act (GFSZA) of 1990, under the same rationale that Congress lacked the appropriate constitutional authority to regulate such local crime. GFSZA made it a federal crime to possess firearms within 1,000 feet of a school campus, and Congress claimed that GFSZA was justified by the Interstate Commerce Clause,[18] but its reasoning was just as absurd as that of VAWA. Congress claimed that firearms at schools might result in violent crimes, which bring about economic costs and threaten the education of students, resulting in a less productive citizenry and higher insurance costs, thus burdening interstate commerce. Because guns at local schools might affect the economy, Congress reasoned, GFSZA was therefore justified under the Commerce Clause, never minding that

state and local police already regulate the possession of firearms on school campuses.[19]

The 1995 *Lopez* Court, also by a similar 5-4 majority, properly rejected Congress' absurd reasoning for the Gun-Free School Zones Act. The Court's opinion, written by Rehnquist, emphasized the Constitution's delegation of enumerated powers to Congress and observed that the possession of guns at schools was in no sense an "economic activity."[20] The *Lopez* Court observed that Congress' Commerce Clause rationale would destroy all reasonable limits on congressional authority, for:

> To uphold the Government's contentions here, we would have to pile inference upon inference in a manner that would bid fair to convert congressional authority under the Commerce Clause to a general police power of the sort retained by the States.[21]

To permit Congress to regulate anything with an incidental effect on interstate commerce, the Court concluded, would be to destroy any "distinction between what is truly national and what is truly local."[22]

Lopez (1995) and *Morrison* (2000) are notable not only because of their constitutional soundness, but, more importantly, because of their unpopularity and reversal of the six-decade tradition of permitting Congress to justify any legislation using an overly broad and wide-reaching conception of the Interstate Commerce Clause. Since the New Deal, Congress had remained virtually unfettered in its use of the Commerce Clause to regulate anything from overtime requirements of local San Antonio transit workers,[23] to collective bargaining by labor unions,[24] to everyday carjackings[25], to preserving large rats[26] and endangered flies[27] For nearly sixty years, not once did the Court strike down any legislation of Congress as exceeding its authority under the Commerce Clause. Not since 1936, when the Court ruled that the Bituminous Coal Conservation Act of 1935 was unconstitutional,[28] had Congress' continually expanding Commerce Clause authority been checked.

The Court's defense of the Commerce Clause and enumerated powers will likely not end with restraining the Violence Against Women Act and the Gun-Free School Zones Act.

The *Lopez* decision of 1995 appeared to put an abrupt end to this lack of Congressional restraint, but skeptics remained dubious following the ruling. The *Denver Post* suggested that *Lopez* might merely become a "one-time constitutional blip"[29] The *Pittsburgh Post-Gazette* opined that the decision might have been a merely accidental "judicial aberration."[30]

Nevertheless, last summer's VAWA decision in *Morrison*, combined with Clinton's inability to appoint new Supreme Court justices after 1994, indicated that constitutional principles of federalism and enumerated powers are not mere technicalities or misinterpretations. The Court, at last truly disgusted by Congress' long abuse of the Commerce Clause, selected appropriate moments during the Clinton Presidency to forewarn an end to the misuse of constitutional authority. Indeed, as Justice Thomas cautioned in his *Morrison* concurrence, "Until this Court replaces its existing Commerce Clause jurisprudence with a standard more consistent with the original understanding [of the Interstate Commerce Clause], we will continue to see Congress appropriating state police powers under the guise of regulating commerce."[31]

The Court's defense of the Commerce Clause and enumerated powers will likely not end with restraining the Violence Against Women Act and the Gun-Free School Zones Act, however. In its current 2000-2001 term, the Court has already heard *Solid Waste Agency v. U.S. Army Corps of Engineers*, in which the Clean Water Act of 1948 was partially challenged as exceeding Congress' Commerce Clause limitations. The Solid Waste Agency of Northern Cook County in Illinois sought to utilize a small local, enclosed pond for waste disposal, but the federal Army Corps of Engineers refused to permit such use, claiming that the Clean Water Act granted the federal Corps jurisdiction over the local pond. The Corps' rationale was that the Clean Water Act permits the federal Corps to regulate any body of water that might "affect interstate commerce."[32] Illinois' local pond, the Corps argued, might be "used as habitat by migratory birds,"[33] thereby affecting interstate commerce, meaning that Congress could regulate the small pond

through the Army Corps of Engineers.[34]

The Court's decision, issued in January of 2001, found that the Clean Water Act did not even grant the regulatory powers claimed by the Army Corps of Engineers. It was not necessary, therefore, to examine whether the Clean Water Act was unconstitutional, for the Corps had simply misinterpreted the Act far too broadly.[35] *Solid Waste Agency*, therefore, did not permit the Court the opportunity to reiterate the constitutional limits on Congress' Commerce Clause authority.

The Supreme Court's defense of the Commerce Clause's integrity from Congressional abuse, however, is not likely to end soon, particularly in the wake of the *Morrison* VAWA ruling. Federal child pornography statutes may be next in line for constitutional scrutinizing.

On February 19, 2000, Yale University administrator Antonio C. Lasaga, a residential college master, pleaded guilty to possessing two videocassettes containing child pornography, one filmed in his Yale campus apartment and the other filmed in a geology department classroom. Lasaga also admitted to downloading tens of thousands of child pornography images onto his school computer.[36] Three months later, the Supreme Court issued its *Morrison* decision striking down VAWA. Lasaga's attorney subsequently began to argue that the federal child pornography statute under which Lasaga had pleaded guilty, the Child Protection and Obscenity Enforcement Act of 1988[37] (CPOEA), was also unconstitutional. Congress' only justification for CPOEA was that child pornographic materials that had crossed state lines (via the internet, for example) or was produced using materials from other states (cameras, photographic paper) have an effect on interstate commerce, thus falling within Congress' jurisdiction. Lasaga's challenge has yet to be ruled on at the federal district level, but similar challenges across the nation suggest that the high court may eventually decide whether the Interstate Commerce Clause gives Congress the authority to regulate child pornography. Most notably, the Sixth Circuit Court ruled early this year in *U.S. v. Corp* that CPOEA may, in some instances, exceed Congress' constitutional authority[38], and should another Circuit Court disagree, the Supreme Court would quite likely decide to resolve the issue.

In Federalist Papers 44 and 78, Madison and Hamilton assuaged Jeffersonian sentiments by arguing that the new Constitution would guarantee that Congressional attempts at usurpation of power could not survive, for they would be countered by the other branches of government. The Supreme Court has at last revived this promise with its politically unpopular but constitutionally sound decisions in *Lopez* and *Morrison*. In doing so, the Court has reiterated the need to respect the limitations of enumerated powers. In his 1998 annual report, Chief Justice Rehnquist lamented the "pressure in Congress to appear responsive to every highly publicized societal ill or sensational crime. Matters that can be handled adequately by the states should be left to them."[39]

The Commerce Clause is certainly Congress' most frequently abused power.

Ultimately, the Commerce Clause is only one of several battlegrounds for preserving constitutional principles of federalism, but it is perhaps the most significant, for federalism is built upon an understanding of enumerated powers, and the Commerce Clause is certainly Congress' most frequently abused power. Consequently, the Court's war against Congressional overreach is hardly over. Federal hate crimes legislation, which has already been upheld as consistent with the First Amendment,[40] may be eventually challenged at the Court as exceeding the Commerce Clause. Other federal legislation regulating carjacking, child support payments, and drug trafficking seem just as constitutionally suspect in the wake of *Lopez* and *Morrison*.

The seemingly endless rise of potentially unconstitutional federal laws regulating crime – more than 40 percent of all federal criminal laws enacted since the Civil War were passed in the last 30 years[41] - suggest additional questions: Why has Congress recently become so fanatic about imposing federal jurisdiction over so many crimes normally punished by state and local governments, and how has this new federalization of crime affected the federal criminal justice system?

Congress' motivation in passing federal criminal statutes such as VAWA, GFSZA, and child pornography laws is no secret – more than

ever before, it is now particularly fashionable for congressmen to appear to their constituents as being "tough on crime." Opposing more extensive federal crime laws is a politically incorrect move for congressmen, and advocating such laws is, as Rutgers University Political Science Professor Ross K. Baker notes, "an easy way to earn bragging rights for being tough on crime."[42]

On the other hand, the increasing federalization of general crime serves to the detriment of criminal justice systems. The American Bar Association found in its 1998 report, *The Federalization of Criminal Law*, that such federal laws result in "long-range damage to real crime control," by diverting scarce state resources into federal efforts to duplicate efforts already performed at the state level, thus depleting funds for those law-enforcement efforts not duplicated by federal bureaucracies.[43] Additionally, the increasing federalization of local crimes results in significant backlog in the federal caseload, creating a federal criminal justice system far more inefficient in disposing criminal cases than state systems, all in the name of politically correct congressional legislation.

As Rehnquist observed in his 1998 report, "federal courts were not created to adjudicate local crimes, no matter how sensational or heinous the crimes may be. State courts do, can, and should handle such problems."[44] The handling of general crime is not only the prerogative of state and local officials, it is also constitutionally abusive and irresponsible for Congress to federalize local crime under the guise of "regulating interstate commerce." *Lopez* and *Morrison* demonstrate that the Supreme Court is the only remaining branch that truly comprehends the principles of enumeration and separation of powers written into our Constitution. The Court's return of integrity and coherence to the Commerce Clause suggests that Congress can no longer rely on the Court to enforce disingenuous criminal legislation that far exceeds Congress' constitutional authority, no matter how politically popular such laws might be.

[1] 42 U.S.C. Sec. 13981, "Violence Against Women Act."
[2] H.R. Conf. Rep. No. 103-711, p. 385 (1994).
[3] S. Rep. No. 102-197, at 53.
[4] Id. at 53.
[5] S. Rep. No. 103-138, at 41.
[6] *Brzonkala v. Virginia Polytechnic and State University*, Civil Action No. 95-1358-R (W.D. Virginia, 1996). 935 F. Supp. 779; 1996
[7] Laurie Asseo, "Court Rejects Federal Rape Law," *Associated Press*, May 15, 2000.
[8] *Brzonkala v. Virginia Polytechnic and State University*, 935 F. Supp. 779 (1996) 781-782.
[9] *Brzonkala v. Virginia Polytechnic and State University*, 935 F. Supp. 779 (1996) 801.
[10] *Brzonkala v. VPI et al.*, 169 F3d 820 (1999) at 889.
[11] *United States v. Morrison* 529 U.S. 598 (2000), "Brief of Petitioner Christy Brzonkala."
[12] *The Civil Rights Cases*, 109 U.S. 3 (1883) at 17.
[13] *Katzenbach v. McClung*, 379 U.S. 294 (1964).
[14] *Wickard v. Filburn*, 317 U.S. 111 (1942).
[15] *United States v. Morrison* 529 U.S. 598 (2000) at 608.
[16] *Morrison* at 609.
[17] *Morrison* at 611.
[18] *United States v. Lopez*, 514 U.S. 549 (1995) at 563-564.
[19] *Lopez*, 514 U.S. 549 (1995) at 563-564.
[20] *Lopez*, 514 U.S. 549 (1995) at 559.
[21] *Lopez* 514 U.S. 549, (1995) at 567.
[22] *Lopez* 514 U.S. 549, (1995) at 567.
[23] *Garcia v San Antonio Metro Transit Authority*, 469 U.S. 528 (1985).
[24] *NLRB v. Jones & Laughlin Steel Corp.* 301 U.S. 1 (1937).
[25] 106 Stat. 3384 , Oct. 25, 1992, "Anti-Car Theft Act of 1992."
[26] The federal Fish & Wildlife Service (FWS) designated 77,000 acres in Riverside, California as a "rat preserve" to protect the kangaroo rat. Homeowners were threatened with $100,000 fines if they cleared brush from around their properties, since it might inconvenience the rodents. As a result, dozens of homes burned to the ground in 1993 after the piles of dry brush caught on fire. (Source: Libertarian Party)
[27] Endangered Species Act. After the federal government designated the Delhi Sands fly an endangered species, San Bernardino County, California had to spend $10 million to build a special 10-acre "preserve" for the buzzing bugs. In 1999, the Interior Department demanded an additional 2,200 acres be set aside for the fly — land that cost more than $200 million. (Source: Libertarian Party)
[28] *Carter v. Carter Coal Co.*, 298 U.S. 238 (1936)
[29] Yoder, Edwin M. "Supreme Court moves to limit federal authority." *The Denver Post.* May 7, 1995 Sunday 2D Edition. Pg. E-05.
[30] Rosen, Jeffrey. "Fed up," The *Pittsburgh Post-Gazette*, May 7, 1995, Sunday, Editorial, Pg. E1.
[31] *United States v. Morrison*, (Thomas, J., concurring) 529 U.S. 598 (2000) at 682.
[32] 33 CFR §328.3(a)(3), Clean Water Act.
[33] 51 Fed. Reg. 41217, Army Corps of Engineers.
[34] *Solid Waste Agency v. U.S. Army Corps of Engineers*, 675 U.S. 640 (2001), Brief for Federal Respondents.
[35] Solid Waste Agency v. U.S. Army Corps of Engineers, 675 U.S. 640 (2001) at 642.
[36] Michael Kolber, "Lasaga pleads guilty to pornography charges," *Yale Daily News*, February 19, 2000, p. 1.
[37] 18 USC Sec. 2252A. "Child Protection and Obscenity Enforcement Act of 1988"
[38] *United States v. Patrick J. Corp*, 236 F3d 325 (6th Circuit 2001) at 326.
[39] Robert Suro, "Rehnquist Decries Shift to Federal Courts," *Washington Post*, January 1, 1999, Online <www.washingtonpost.com>.
[40] *Wisconsin v. Mitchell*, 508 U.S. 476 (1993).
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[42] Robert Suro, "Rehnquist Decries Shift to Federal Courts," *Washington Post*, January 1, 1999, Online <www.washingtonpost.com>.
[43] John S. Baker Jr. et al, "The Federalization of Criminal Law," American Bar Association, 1998.
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